



RESIDENTIAL RENTAL AGREEMENT

State of South Carolina

County of Lexington

This rental agreement (hereinafter "Rental Agreement") made at 3790 Fernandina Rd, Suite #105, Columbia, South Carolina, 29210, is between the tenant(s): Kenfort Guillaume and Amber Guillaume (hereinafter collectively "Tenant") and Turner Properties, INC, Agent for Owner its successors and assigns (hereinafter "Landlord").

1. PROPERTY: Landlord rents to Tenant, and Tenant rents from Landlord, the Property with improvements located in Richland County, South Carolina, which is currently described by the following address: 4922 Colonial Drive, Columbia, SC 29203.

2. TERM: The initial term of this Rental Agreement shall commence on 06/15/2023 and end on 07/01/2024.

This Rental Agreement will automatically renew on a month-to-month basis unless either party gives at least sixty (60) days written notice of termination or intent to move-out as required by Paragraph 11.

3. RENT: Tenant agrees to pay Landlord \$\$1,350.00 per month for rent, payable in advance and without demand, on or before the first day of every month. The rent shall be made payable to Turner Properties, INC.

IF YOU DO NOT PAY YOUR RENT ON TIME: THIS IS YOUR NOTICE. IF YOU DO NOT PAY YOUR RENT WITHIN FIVE (5) DAYS OF THE DUE DATE, LANDLORD CAN START TO HAVE YOU EVICTED. YOU WILL GET NO OTHER NOTICE AS LONG AS YOU LIVE IN THIS RENTAL UNIT.

PRORATION: Where the term of this Rental Agreement commences or terminates on a day other than the first day of the month, Tenant shall pay prorated rent due for the remainder of the month.

4. SECURITY DEPOSIT: Tenant agrees to deposit with Landlord a security deposit in the amount of \$\$0.00, due at the execution of this Rental Agreement.



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5. LATE CHARGE: It is understood that if the full amount of rent is not received by the fifth (5th) day of each month, a late charge of seventy-five (\$75.00) dollars will be added to the amount due with a charge of five (\$5.00) dollars for each additional day up to a maximum late charge of two hundred five (\$205.00) dollars until the outstanding balance is paid in full. Payments received are applied to late fees and legal fees first. Any outstanding rent charge will incur daily late fee charges.

6. EVICTION ADMIN FEE: In the event that an Eviction action is **filed** against the Tenant, an administrative fee of **\$200.00** will be assessed to Tenant to cover the costs of attorney fees, court costs, and any additional administrative costs to Landlord. Landlord has the right to charge and recover additional attorneys' fees and court costs in the event that Tenant engages in protracted legal proceedings that cause Landlord's actual out-of-pocket legal expenses to exceed this amount. Evictions will continue until the balance is paid in full.

7. AS IS CONDITION: Tenant agrees to accept the property provided in "as is" condition. Tenant acknowledges Turner Properties nor the owner are responsible or liable in any way for the selection, location, setting, floor plan, cosmetic items, condition, lawn or landscaping, facilities, or any other feature(s) of the property provided the property meets normal and ordinary standards of habitability to include essential service functionality.

8. LEAD-BASED PAINT DISCLOSURE: Applies to most residential properties built before 1978. The Lead Based Paint Disclosure Addendum is attached if the Property was built before 1978.

9. RENTAL APPLICATION: Tenant acknowledges that Landlord has relied upon Tenant's completed rental application, a copy of which is attached hereto, as an inducement for entering into this agreement, and Tenant warrants to Landlord that the facts stated in the application are true to the best of Tenant's knowledge. If any facts stated in the rental application are false or misleading, Landlord shall have the right to terminate the residency immediately and collect from Tenant any damages, including reasonable attorney fees, resulting therefrom.

8. OCCUPANTS: Only persons designated in this Rental Agreement, or as further modified or agreed to in writing by Landlord, shall reside in the Property. For purposes of this Rental Agreement, the designated occupants are:

Occupant 1: Kenfort Guillaume Relationship to Tenant: Self

Occupant 2: Amber Guillaume Relationship to Tenant: Self

Occupant 3: · Relationship to Tenant: ·

Occupant 4: · Relationship to Tenant: ·



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(Hereinafter collectively "Occupants")

9. SUBLETTING PROHIBITED: In no event shall anyone other than Tenant and Occupants listed above live in or spend more than 14 days or nights in the Property. Tenant must have written permission from Landlord for anyone occupying the Property for more than 14 days. Tenant shall not assign or sublet the Property, or any part thereof, without the written consent of Landlord. This includes short term leasing such as AirBnB, VRBO etc. which is strictly prohibited.

10. RETURNED CHECKS: Tenant agrees to pay fifty (\$50.00) dollars for each returned check or NSF or Bad Account E-payment to cover bookkeeping costs, bank charges, and handling charges, plus initial and daily late charges from the due date until acceptable payment is received. If a check is returned for insufficient funds or any other reason, all future rent and fees shall be paid in the form of certified check, cashier's check, or money order. If either the security deposit or first month's rent is returned for insufficient funds, Landlord may declare this Rental Agreement void and immediately terminated.

11. RENEWAL TERMS: Tenant may not move out before the term or renewal period of this Rental Agreement ends unless all rent for the entire term or renewal period is paid in full. Early move-out may result in relating charges and acceleration of future rent under this Rental Agreement. Turner Properties does offer early termination. Either party may terminate this Rental Agreement at the end of the initial term with sixty (60) days written notice. However, if Tenant fails to give notice, this Rental Agreement will be extended on a month-to-month basis on the same terms and conditions contained in this Rental Agreement. During such a month-to-month term, a month to month administrative fee of two hundred (\$200.00) dollars per month will be added to the monthly rental amount plus a rental rate increase determined at the time of the lease ending and sixty (60) days written notice by either party is required prior to termination.

12. RENTAL RATE ADJUSTMENT: On and after the expiration of the initial term of this Rental Agreement, Landlord, at Landlord's discretion, may alter the rental rate in effect provided only that written notice of such alteration is delivered to Tenant at least thirty (30) days prior to the effective date of alteration.

13. MOVE-OUT NOTICE: Any written notice given by either party to the other party in order to meet the sixty (60) day notice requirement will be deemed given, and the sixty (60) days deemed to commence on the first day of the month following the date of receipt of said notice. Any termination permitted by other sections contingent upon a sixty (60) day notice will then be effective on the last day of the calendar-month following receipt of said notice. If expiration date of this Rental Agreement is not on the last day of the calendar month, then sixty (60) days' notice is required to conform to the expiration dates. The sixty (60) days' notice will only be accepted if in compliance with the end date on page one.



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14. MOVE-OUT PROCEDURES: Tenant covenants that upon the termination of this Rental Agreement, or any extension thereof, that Tenant will quietly and peaceably deliver possession of the Property in the same condition in which it was received by tenant at move in, free of Tenant's personal Property, garbage, and other waste, and return all keys to Landlord. Additional fee will be added to Tenants ledger for holding over past scheduled move-out date.

15. HOLDOVER: You or any occupant, invitee, or guest must not hold over beyond the date contained in your move-out notice or our notice to vacate (or beyond a different move-out date agreed to by the parties in writing). If holdover occurs, then: (1) holdover rent is due in advance on a daily basis and may become delinquent without notice or demand; (2) rent for the holdover period will be increased by 50% over the then-existing rent plus an administrative fee of \$250, without additional notice; (3) you'll be liable to us for all rent for the full term of the previously signed Lease Contract of a new resident if they aren't able to occupy the home because of the holdover; and (4) at our option, we may extend the lease term- for up to one month from the date of notice of lease extension- by delivering written notice to you while you continue to holdover.

16. EARLY TERMINATION: Tenant may, upon 60 days' written notice to Landlord, terminate this lease provided that the tenant pays a termination administrative fee equal to 2 month's rent. Termination will be effective as of 60 days from the date the termination administrative fee is paid. Rent will continue to be due for the remaining 60 days of the lease.

17. SECURITY DEPOSIT DEDUCTIONS AND OTHER CHARGES: Tenant agrees to deposit with Landlord a security deposit in the amount listed in Paragraph 4 of this Rental Agreement, to be held as security for the full and faithful performance by Tenant of all terms and conditions herein. It is understood and agreed to that no part of this deposit is to be applied to any rent which may become due under this Rental Agreement. Upon termination of tenancy, all Property or money held by Landlord as security may be applied to the payment of accrued rent and the amount of loss of rents or damages which Landlord has suffered by reason of Tenant's noncompliance with this Rental Agreement. Any deduction from the security deposit must be itemized by Landlord in a written notice to Tenant together with the amount due, if any, within 30 days after termination of the tenancy and delivery of possession and demand by Tenant, whichever is later. Tenant shall provide Landlord in writing with a forwarding address or new address to which the written notice and amount due from Landlord may be sent. If Tenant fails to provide Landlord with a forwarding or new address, Tenant is not entitled to damages under this Paragraph provided Landlord had no notice of Tenant's whereabouts and mailed the written notice and amount due, if any, to Tenant's last known address. In the event the security deposit is not sufficient to pay all charges due, Tenant shall pay said charges within five (5) business days after receiving notice from Landlord.



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18. UTILITIES AND SERVICES: All utilities are payable by Tenant including any electric, gas, water, or sewer charges. In the event Tenant defaults on payment of utilities, Landlord may pay and charge Tenant for such amounts as additional rent, together with any penalties, charges, or interest. Tenant shall be liable for any inspections required by any authorities or utility companies due to Tenant's failure to obtain service at time of occupancy or to maintain service during the duration of this Rental Agreement. Furthermore, some utility companies prohibit the Tenant from placing service into their name. If this occurs a charge will be added onto Tenants monthly ledger equal to the utility charge. Additionally, Tenant is responsible for all costs associated with connecting or installing services including, but not limited to, any start-up fees, security deposits, and installation costs in connection with providing utilities to the Property during the term of this Rental Agreement. TENANT ACKNOWLEDGES RESPONSIBILITY FOR MAKING SURE ALL UTILITIES ARE ACTIVE PRIOR TO MOVE IN.

19. ESSENTIAL SERVICES: Landlord is required to provide essential services to Tenant, which include sanitary plumbing or sewer services; electricity; gas, where it is used for heat, hot water, or cooking; running water, and reasonable amounts of hot water and heat, except where the building that includes the dwelling unit is not required by law to be equipped for that purpose, or the dwelling unit is so constructed that heat or hot water is generated by an installation within the exclusive control of Tenant and supplied by a direct public utility connection. Tenant is responsible for utility payments as provided in Paragraph 17.

20. TENANT OBLIGATIONS: Tenant agrees to keep the Property and all parts of the Property safe and clean. Tenant, Occupants, and all guests must comply with this Rental Agreement and all community policies pertaining to the Property, including any additional rules and regulations Landlord may adopt concerning Tenant's use and occupancy of the Property. Tenant, Occupants, and all guests must conduct themselves in a manner that will not interfere with other tenant's and neighbor's right to peaceful enjoyment. Tenant, Occupants, and all guests must not engage in or facilitate criminal or drug related activities. Any such violation constitutes a substantial violation and a material noncompliance of this Rental Agreement and is grounds for termination of tenancy and eviction from the Property.

a. SAFETY AND SECURITY: Tenant, Occupants, and all guests must exercise due care for their own and others' safety and security, especially in the use of smoke detectors, locks, and other safety or security devices. Landlord disclaims any implied warranties of security. In the case of accident, fire, smoke, or suspected criminal activity, or other emergency involving imminent harm, Tenant must dial 911 or immediately call local medical emergency, fire, or police personnel. Landlord is not liable to Tenant, Occupants, or any guest for injury, damage, or loss to person or property caused by criminal conduct of other persons, including theft, burglary, assault, vandalism, or other crimes. Landlord is not required to furnish security personnel, security lighting, security gates, or other forms of security. Landlord is not responsible for obtaining criminal history checks on anyone within the community in



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which the Property is located. If Tenant, Occupants, or any guests are affected by a crime, Tenant must make a written report to Landlord and to the appropriate law enforcement agency. Tenant must also furnish Landlord with the law enforcement's incident report upon request. Landlord will provide smoke detectors which are tested when Tenant first takes possession of the Property. After taking possession of the Property, Tenant is responsible to pay for, test, and replace batteries as needed at Tenant's expense. Landlord reserves the right to replace dead or missing batteries at Tenant's expense, without prior notice to Tenant. Smoke detector malfunctions must be immediately reported to Landlord. Tenant is strictly forbidden from disabling smoke detectors. If Tenant damages or disables a smoke detector or removes a battery without replacing it with a working battery, Tenant may be liable to Landlord and others for any loss, damage, attorney's fees or fines from fire, smoke, or water resulting therefrom. A fine of two hundred (\$200.00) dollars per incident will be imposed upon Tenant by Landlord for tampering with a smoke detector, even if the tampering is discovered after Tenant has vacated the Property.

b. MAINTENANCE: Tenant agrees to be responsible for, and to make at Tenant's expense, all routine maintenance, including but not limited to, stoppage of drains or sewer lines because of clogged or broken water pipes or fixtures due to neglect or carelessness of Tenant. Tenant understands never to flush anything down the toilet except human waste and toilet paper. Never flush any "flushable" products besides toilet paper. Any clogged drains in the home are Tenant's responsibility. Tenant will, at Tenant's expense, keep sinks, lavatories, and commodes open reporting any initial problem within five (5) days of occupancy, repair any and all damages caused by Tenancy, and replace light bulbs as needed. No repairs, alterations or changes in or to the Property or the fixtures or appliances contained therein, shall be made except after written consent of Landlord, and shall be the responsibility of Tenant for the cost of restoring said Property to their original condition if Tenant makes any such unauthorized modifications. Tenant also agrees to pay for the cost of all repairs made necessary by negligent or careless use of the Property and pay for repairs or loss resulting from theft, malicious mischief, or vandalism by Tenant or Tenant's guests. Tenant will be charged for service call if the issue is a result of damage or misuse by Tenant. Tenant acknowledges and understands AC units can only bring the inside temperature down 18 to 22 degrees from the day's outside high air temperature. Additionally, Tenant understands hot days if the indoor temperature is within those parameters the unit is doing all it can. Moreover, Tenant agrees to be charged a service fee if it is determined the unit is not malfunctioning. Tenants agree to pay a "no show fee" to vendor if they setup service and are not home at the scheduled time. Tenants agree to pay for any non-necessary service call fees. This includes Tenant not understanding or operating an item correctly. Landlord agrees to make repairs and do what is necessary to keep the property in a fit and habitable condition as required under the South Carolina Residential Landlord Tenant Act which includes all electrical, gas, plumbing, sanitary, HVAC, and other facilities supplied by Landlord.



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Common maintenance items that **are covered** by Landlord are essential service items such as the following:

- ▶ Non-functioning heat or air conditioning
- ▶ No hot water
- ▶ Active plumbing leaks
- ▶ Non-functioning Stove, Oven, Refrigerator, Dishwasher, built in Microwave
- ▶ Leaking roof
- ▶ Non-functioning garage door opener

Common items **not covered** include but not limited to:

- ▶ Lighting pilot lights
- ▶ Ice maker/Water dispenser
- ▶ Pest Control
- ▶ Toilet/Sewer or pipe clogs
- ▶ Weather-stripping
- ▶ Cosmetic items

- ▶ Light bulbs
- ▶ Thermostat/Smoke detector/Carbon Monoxide batteries
- ▶ Mailbox replacement
- ▶ Resetting breakers or GFCI circuits

c. **FREEZING WEATHER:** Tenant agrees that before the onset of freezing weather, GARDEN HOSES will be removed from outside faucets and water to outside faucets will be turned off if the premises are so equipped. TENANT further agrees to leave inside faucets dripping during below freezing temperatures to avoid freezing the water system. TENANT agrees to provide heating and to promptly pay any and all charges made by the utility company to ensure the premises will have the use of heat, power, and water at all times. TENANT explicitly assumes the risk of loss or damage to the premises and shall pay for such loss or damage caused by any freezing which results in TENANT'S failure to provide heating or any shut off of utilities due to non-payment of bill. Should the plumbing freeze, temporary housing shall be the TENANT'S responsibility until pipes can be professionally thawed.

d. **NOTICE:** Tenant must promptly notify Landlord of water leaks, plumbing problems, HVAC system problems, electrical problems, malfunctioning lights, broken or missing locks or latches, smoke detector problems, and other conditions that pose a hazard to property, health, or safety. Tenant must send a signed written notice to our designated representative for requests for repairs, installations,



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services, security-related matters, and similar correspondence, even in the event that verbal notice is given or required. Landlord will act with customary diligence to make repairs and reconnections and rent charges will not abate in whole or in part. Tenant shall report any pest problem within three (3) days of possession. Tenant's failure to identify any pest infestation within the three (3) days of taking possession shall constitute Tenant's agreement that Property has no infestation of any kind. Any future infestation of any kind must be reported to Landlord and shall be the responsibility and expense of Tenant. Tenant is responsible for reporting any suspected or known termite infestation, but is not responsible for termite control.

e. **DAMAGES:** Tenant is directly responsible for any damage caused by Tenant's appliances or furniture. Tenant is responsible for changing HVAC filters, reporting water leaks, lighting pilot lights, checking for tripped breakers, changing smoke detector batteries, thermostat batteries, garage door remote batteries, ice maker filters, and housekeeping repairs. Tenants will be held liable for damage to HVAC systems caused by dirty or missing filters and damages resulting from unreported problems. Tenant agrees not to install video doorbells or TV mounts without consent of landlord. If consent is granted tenant will be responsible for returning these to original condition. Tenant acknowledges that Tenant has inspected the Property and agrees that the Property and all common areas are in a safe, fit, and habitable condition. Tenant acknowledges receipt of instructions for smoke detector operation.

f. **IMPROVEMENTS:** No repair costs shall be deducted from rent. All improvements made by Tenant to the Property shall become the property of Landlord. Locks and deadbolts shall not be changed without the express permission of Landlord.

g. **LAWN CARE:** Yard must be kept neat and trimmed at all times. Irrigation system, if available, must be used to keep grass from dying. This is especially important in the summer. If lawn care is not maintained by Tenant, Landlord will employ professional landscaping at Tenant's expense. In the case of a single family house, Tenant shall keep the yard mowed, watered, and free of fire ants; shrubs and bushes neatly trimmed; and all other landscaping maintained. Tenant further agrees to be responsible for removal of all Tenant's hazardous materials, ashes, garbage, rubbish, and other waste in a reasonably clean and safe manner.

h. **PERSONAL PROPERTY:** Tenant agrees not to place antennas, satellite dishes, waterbeds, or auxiliary heaters on the Property without written permission from Landlord. Any furnishings or equipment to be provided by Landlord shall be set out in a special inventory upon Tenant taking possession of the Property. The inventory shall be signed by both Tenant and Landlord concurrently with this Rental Agreement and shall be a part of this Rental Agreement.



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21. INSURANCE: The Landlord requires Tenant obtain liability coverage of at least \$100,000 in property damage and legal liability from an A-rated carrier and to maintain such coverage throughout the entire term of the lease agreement. Tenant is required to furnish Landlord evidence of the required insurance prior to occupancy, at the time of each lease renewal period, and upon request. To satisfy the insurance requirement, Tenant may either (1) be automatically enrolled into a policy that satisfies the coverage requirements as part of the Resident Benefits Package; or (2) obtain alternative liability coverage from an insurer of Tenant's choice. If Tenant furnishes their own policy, and the policy lapses Tenant is subject to a \$50 lease violation fee and agrees to be subsequently enrolled in the policy provided in the Resident Benefits Package.

22. DESTRUCTION OR DAMAGE TO PROPERTY: If the dwelling unit or Property are damaged or destroyed by fire or casualty to the extent that normal use and occupancy of the dwelling unit or Property is substantially impaired, Tenant may immediately vacate the Property, but must give notice to Landlord in writing within seven (7) days thereafter of Tenant's intention to terminate this Rental Agreement, in which case this Rental Agreement will terminate as of the date of vacating the Property; or if continued occupancy is lawful, Tenant may vacate any part of the dwelling unit or Property rendered unusable by the fire or casualty, in which case Tenant's liability for rental payments will be reduced in proportion to the diminution of the fair market rental value of the Property. If this Rental Agreement is terminated under this clause, Landlord shall return the security deposit and all prepaid rent, and an accounting for rent will be made from the date of the fire or casualty.

23. RIGHT TO ACCESS: Tenant shall not unreasonably withhold consent to Landlord to enter the Property in order to inspect the Property; make necessary or agreed repairs, decorations, alterations, or improvements; supply necessary or agreed services; or exhibit the Property to prospective or actual purchasers, mortgagees, tenants, workmen, or contractors. **Tenant shall allow Landlord to enter the Property every six (6) months to inspect and take pictures of the Property in order for Landlord to generate a report of the condition of the Property.**

Landlord or Landlord's agent may enter the Property without consent of Tenant:

- (a) At any time in case of emergency - prospective changes in weather conditions which pose a likelihood of danger to the Property may be considered an emergency;
- (b) Between the hours of 9:00 a.m. and 6:00 p.m. for the purpose of providing regularly scheduled periodic services, provided Landlord announces intent to enter to perform services; or
- (c) Between the hours of 8:00 a.m. and 8:00 p.m. for the purpose of providing services requested by Tenant and that prior to entering Landlord announces intent to enter to perform services.



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(d) Pursuant to court order, as permitted by the South Carolina Residential Landlord and Tenant Act when accompanied by a law enforcement officer at reasonable times for the purpose of service of process in ejectment proceedings, or unless Tenant has abandoned or surrendered the Property.

(e) Prior to the termination of your lease, an agent will place a sign in the yard along with a lockbox on the property. Tenant shall be notified in advance of all showings.

Landlord shall not abuse the right of access or use it to harass Tenant. Except in cases of emergency above, Landlord shall give Tenant at least 24 hours' notice of intent to enter and may enter only at those reasonable times listed above. If agents are denied access or are not able to access the property because of tenant's failure to make the property accessible, tenant will be charged a trip charge of \$99.00. Failure to allow reasonable showings during the final 2 weeks of the lease constitutes default of the lease. The security deposit, in its entirety, can be forfeited for this reason.

23. CONDEMNATION: Tenant hereby waives any injury, loss, damage, or claim against Landlord resulting from any exercise of the power of eminent domain for all or any part of the Property or surrounding grounds of which they are a part. All awards of the condemning authority for the taking of land, parking areas, or buildings shall belong exclusively to Landlord. In the event a substantial or full amount of the Property shall be taken, this Rental Agreement shall terminate and rental payments shall be apportioned on the date the right to possession is vested in the condemning authority. In the event any part of the Property or building that the Property is a part of (whether or not the actual Property shall be affected) is taken as a result of the exercise of the power of eminent domain, and the remainder of the Property shall not, in the opinion of Landlord, constitute an economically feasible operating unit, Landlord may, by written notice to Tenant given within sixty (60) days after the date of taking, terminate this Rental Agreement and apportion rent as of a date set out in the notice not earlier than thirty (30) days after the date of the notice.

24. ABANDONMENT: The unexplained absence of a Tenant from the Property for a period of fifteen (15) days after default in the payment of rent must be construed as abandonment of the Property. If Tenant abandons the Property for a term beginning before the expiration of this Rental Agreement, it terminates as of the date of the new tenancy, subject to the other Landlord's remedies. If Landlord fails to use reasonable efforts to rent the Property at a fair rental amount or if Landlord accepts the abandonment as surrender, this Rental Agreement is considered to be terminated by Landlord as of the date Landlord has notice of the abandonment. When the Property has been abandoned or this Rental Agreement has come to an end and Tenant has removed a substantial portion of personal property or voluntarily and permanently terminated the utilities and has left personal property in or on the Property with a fair-market value of five hundred (\$500.00) dollars or less, Landlord may enter the Property, using forcible entry if required, and dispose of the personal property.



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25. BREACH BY TENANT AND FAILURE TO PAY RENT: If there is a breach by Tenant under this Rental Agreement, other than nonpayment of rent or noncompliance with Paragraph 24 above, Landlord will deliver a written notice to Tenant specifying the acts and omissions constituting the breach and that this Rental Agreement will terminate upon a date not less than fourteen (14) days after receipt of the notice if the breach is not remedied within fourteen (14) days.

This Rental Agreement shall terminate as provided in the notice except where the breach can be remedied by repairs or otherwise and Tenant adequately remedies the breach before the date specified in the notice, or if such remedy cannot be completed within fourteen (14) days, is commenced within the fourteen (14) day period and is pursued in good faith to completion within a reasonable time.

If rent is unpaid when due and Tenant fails to pay rent within five (5) days from the date due, Landlord may terminate this Rental Agreement provided Landlord has given Tenant written notice of nonpayment and Landlord's intention to terminate this Rental Agreement. If the rent is not paid within that period, notice is contained in Paragraph 3. Landlord may recover actual damages and obtain injunctive relief in magistrate's or circuit court without posting bond for any noncompliance by Tenant with this Rental Agreement or Paragraph 24 above. If Tenant's noncompliance is willful other than nonpayment of rent,

Landlord may recover reasonable attorney's fees. If Tenant's nonpayment of rent is not in good faith, Landlord is entitled to reasonable attorney's fees. If there is noncompliance by Tenant under Paragraph 24 above, materially affecting health and safety that can be remedied by repair, replacement of a damaged item, or cleaning and Tenant fails to comply as promptly as conditions require in case of emergency, or within fourteen (14) days after written notice by Landlord specifying the breach and requesting that Tenant remedy it within that period of time, Landlord may enter the Property and cause the work to be done in a workmanlike manner and shall in addition have the remedies available under the South Carolina Residential Landlord Tenant Act. If there is noncompliance by Tenant with Paragraph 9 above materially affecting health and safety other than as set forth in the preceding paragraph, and Tenant fails to comply as promptly as conditions require in case of emergency, or within fourteen (14) days after written notice by Landlord if it is not an emergency, specifying the breach and requesting that Tenant remedy within that period of time, Landlord may terminate this Rental Agreement. If this Rental Agreement is terminated, Landlord has a right to possession and for rent, and a separate claim for actual damages for breach of this Rental Agreement and reasonable attorney's fees. Any claim not satisfied by Tenant will be turned in to the credit bureau.

26. REMEDY AFTER TERMINATION: If this Rental Agreement is terminated, Landlord has a right to seek eviction, possession, payment of rental charges, and a separate claim for actual damages for breach of this Rental Agreement, reasonable attorney's fees, collection costs, and court costs.



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27. NOTICE: All notice requirements under this Rental Agreement from Tenant to Landlord are considered to have been received from Tenant when the written notice is delivered at the place of business of Landlord through which this Rental Agreement was made or at any place held out by Landlord as the proper place of receipt of the notice.

28. PETS: No animals are allowed, even temporarily, anywhere on the Property unless Landlord has so authorized in writing in advance. Tenant will be considered in default of this Rental Agreement if any animal is found on the Property in violation of this Rental Agreement. Landlord may also charge three hundred (\$300.00) dollars per violation of this Paragraph in addition to the remedy of holding Tenant in default of this Rental Agreement. Tenant will also be responsible for any and all damages caused by an animal found on the Property in violation of this Rental Agreement.

29. WAIVER: Tenant is considered to have waived violation of Landlord's duty to maintain the Property as set forth by this Rental Agreement or violation of Landlord's duties under the South Carolina Residential Landlord and Tenant Act, as defense in an action for possession based upon nonpayment of rent, or in an action for rent concerning a period where Landlord has no notice of the violation of the duties, fourteen (14) days before rent is due for violations involving services other than essential services, or Landlord has no notice before rent is due which provides a reasonable opportunity to make emergency repairs necessary for the provision of essential services. No modification, change, or cancellation hereof shall be valid unless in writing and executed by all parties hereto. No representation or promise has been made by either party hereto except as herein stated.

30. PEACEFUL ENJOYMENT: Landlord covenants that Tenant, on paying the rent and performing the covenants hereof, shall and may peaceably and quietly have, hold, and enjoy the Property for the term mentioned without hindrance or interruption by Landlord.

31. PROVISIONS: The provisions of this Rental Agreement shall be binding upon and insure to the benefit of Landlord and Tenant.

32. SUBORDINATION: Tenant's rights are subject to any bona fide mortgage which now covers said Property and which may hereafter be placed on said Property by Landlord. Tenant shall, upon request by Landlord, execute a subordination of the rights under this Rental Agreement to any mortgage given by Landlord hereunder. Tenant shall, upon request by Landlord, promptly execute a certification of good standing certifying the terms of this Rental Agreement, its due execution, the rental provisions hereof, or the terms of amendments hereto, if any, and any other information reasonably requested.



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32. TRUST ACCOUNT INTEREST: ACCORDING TO THE RULES AND REGULATIONS OF THE SOUTH CAROLINA REAL ESTATE COMMISSION AND THE CODE OF LAWS OF SOUTH CAROLINA, 1976, AS AMENDED, THE BROKER-IN-CHARGE OR PROPERTY MANAGER-IN-CHARGE HAS THE OPTION TO PLACE TENANT'S SECURITY DEPOSIT INTO AN INTEREST-BEARING ACCOUNT AND TO RETAIN ALL INTEREST INCURRED IN SAID ACCOUNT. TENANT AGREES TO AND UNDERSTANDS THAT TENANT HAS BEEN INFORMED OF TENANT'S RIGHT TO OWNERSHIP OF THE INTEREST BUT RELINQUISHES TO THE BROKER-IN-CHARGE OR PROPERTY MANAGER-IN-CHARGE BY THIS WRITTEN AGREEMENT SAID RIGHT OF OWNERSHIP.

34. RULES AND REGULATIONS: The common area facilities, if any, such as a swimming pool, laundry room, recreational, or other common area facilities, when open and operating, are subject to applicable rules and regulations posted by Landlord. Tenant agrees to observe all rules and regulations that Landlord or community has now or may hereafter adopt for the use of the Property. Tenant is further bound by all Home Owner's Association rules and restrictions and agrees to pay any and all fines for HOA violations.

35. HOA ADMIN FEES: An HOA Administrative Fee will be charged to the Tenant If the homeowner or Landlord receives a homeowner's association letter of violation of the HOA rules and regulations. The most common violation examples are lawns needing cut, edged, dead grass, hedges needing trimmed etc., vehicles, unauthorized boats or trailers parked in the yard or street, garbage cans being in view from the front of the home, basketball goals in view from the street. An administrative fee of \$50 will be charged for the 1st violation, and \$75 for the 2nd and any subsequent violations. This is in addition to any fines levied by the HOA against the homeowner.

36. PARKING: Under no circumstances will overnight street parking, parking in the yard, or parking on the sidewalk be permitted. Parking or storage of boats, trailers, buses, or motor homes in the driveway or on the Property is strictly prohibited; and will be permitted only by Tenant obtaining the prior written consent of Landlord. If in violation of any of the rules and regulations listed in Paragraph 35, Tenant will be held responsible for fees or fines associated with violations listed in Paragraph 35.

37. SMOKING: Due to the known health risks from secondhand smoke and the increased maintenance, cleaning, redecorating costs, and risk of fire from smoking, Landlord strongly urges Tenant, Occupants, and all guests to refrain from smoking on the Property. "Smoking" means inhaling, exhaling, breathing, or carrying any lighted cigar, cigarette, vaporizing or other tobacco product or similar lighted product in any manner or form. If Tenant, Occupants, or any guest chooses to smoke anywhere on the Property, Tenant will be subject to pay any and all damages resulting therefrom including, but not limited to, deodorizing charges, carpet and carpet pad replacement charges, painting charges, and burn mark repairs.



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38. JOINT RESPONSIBILITY: If this Rental Agreement is executed by more than one (1) Tenant, the responsibility and liabilities herein imposed shall be considered and construed to be joint and several, and the use of the singular shall include the plural.

39. CORRESPONDENCE: All notices, requests, and demands, unless otherwise stated herein, shall be addressed and sent to: **3790 Fernandina Rd, Suite #105, Columbia, SC 29210**

40. CAPTIONS: Any heading preceding the text of any paragraph hereof is inserted solely for convenience of reference and shall not constitute a part of this Rental Agreement, nor shall they affect its meaning, construction, or affect.

41. FACSIMILE AND OTHER ELECTRONIC MEANS: The parties agree that this Rental Agreement may be communicated by use of a fax or other secure electronic means, including, but not limited to, electronic mail and the internet, and the signatures, initials, and handwritten or typewritten modifications to any of the foregoing shall be deemed to be valid and binding upon the parties as if the original signatures, initials, and handwritten.

42. SATELLITE SYSTEM: Tenant must obtain written consent from Landlord before installing a satellite system on the Property. If Landlord allows Tenant to install a satellite system, Tenant may not mount the satellite system anywhere on the building and the satellite system must not be visible from the front of the Property. Tenant must follow all additional instructions and rules regarding satellite systems as Landlord shall require.

43. CARPET CLEANING: Tenant agrees to allow Landlord to withhold a carpet cleaning and deodorizing charge from Tenant's security deposit, in addition to any other charges withheld from the security deposit, for the actual cost of cleaning and deodorizing the carpet upon Tenant's vacating the Property.

44. REKEYING: Tenant is prohibited from adding, changing, or in any way altering locks installed on the doors of Premises without prior written permission of Landlord. If tenant alters or changes locks a fee will be assessed. All locks are rekeyed before Tenant moved in. Tenant agrees to allow Landlord to withhold a \$99 fee to rekey the home after tenant vacates.

45. LOCKOUTS: If Tenant locks themselves out of the property during business hours they may obtain a copy at the management office. A check out administrative fee of \$25 will be charged at pickup. This is refundable if key is returned. If lockout is not during business hours it is Tenant's responsibility to hire a locksmith to gain entry. Any associated cost would be tenant's responsibility.



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46. MILITARY CLAUSE: If Tenant is a member of the Armed Forces of the United States, stationed in the central SC area, and receives permanent change of station orders out of the central SC area, Tenant may, upon presentation of a copy of said orders of transfer to Landlord, along with thirty (30) days written notice of intent to vacate and payment of all rent to the expiration date of such written notice, and any miscellaneous charges in arrears, terminate this Rental Agreement. Normal enlistment termination or other type of discharge from Armed Forces, unless due to conditions beyond the service member's control or acceptance of government quarters is not a permanent change of station and is not justification for termination of this Rental Agreement. Withholding knowledge of pending transfer or discharge at time of entry into this Rental Agreement voids any consideration or protection offered by this section.

47. GOVERNING LAW: The laws of the State of South Carolina shall govern the validity, performance, and enforcement of this Rental Agreement. The terms of this Rental Agreement are subject to the provisions of the South Carolina Residential Landlord and Tenant Act, and such provisions and remedies contained therein may not be waived by this Rental Agreement or other agreement. Should a conflict arise with a provision of this Rental Agreement and the South Carolina Residential Landlord Tenant Act, the provision shall be construed in accordance with the South Carolina Residential Landlord Tenant Act. Should any provision of this Rental Agreement be found to be unenforceable under South Carolina law, that provision shall be supplemented by the terms of the South Carolina Residential Landlord Tenant Act and the remaining provisions shall survive and this Rental Agreement and the remaining provisions shall remain in full force and effect.

48. MEGAN'S LAW: Tenant and Landlord agree that the Owner and Broker and all affiliated agents are not responsible for obtaining or disclosing any information contained in the South Carolina Sex Offender Registry. Tenant and Landlord agree that no cause of action may be brought against the Owner or Broker and all affiliated agents for failure to obtain or disclose any information contained in the South Carolina Sex Offender Registry. Tenant agrees that Tenant has the sole responsibility to obtain any such information. Tenant understands that Sex Offender Registry information may be obtained from the local sheriff's department or other appropriate law enforcement officials.

49. TENANT HANDBOOK: Tenant acknowledges and agrees to abide by company policies and procedures outlined in the tenant handbook. The tenant handbook can be found online at www.TurnerProperties.com



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50. Lease Renewal Offer. If Tenant signs the Renewal Agreement within five (5) days after offer is presented to Tenant, Tenant shall be charged a \$25 Lease Renewal Administrative Fee. If Tenant signs this Agreement more than 5 days after offer to renew is presented but prior to the calendar month in which the existing lease expires, Tenant shall pay a \$50 Lease Renewal Administrative Fee. If Tenant signs this Agreement within the calendar month in which the existing lease expires, but prior to the final ten (10) calendar days of the existing lease term, Tenant shall pay a \$100 Lease Renewal Administrative Fee. If Tenant signs this Agreement within the final ten (10) calendar days of the existing lease term, Tenant shall pay a \$150 Lease Renewal Administrative Fee. If Tenant does not sign this Agreement prior to the expiration date of the existing lease, Tenant may still sign this Agreement at any time prior to a notice to terminate being issued, and Tenant shall pay a \$250 Lease Renewal Administrative Fee

51. PAYMENT OPTIONS: Payments may be submitted via E-check online, credit card online, personal check, cashier's check or money order. At the time of lease signing all funds must be paid with certified funds. If paying rent with a personal check there is a \$20 administrative fee, Cashiers check or money order \$10 administrative fee, online Echeck \$5 administrative fee, online credit card 4% of charge plus \$5 administrative fee.



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The parties have executed this Rental Agreement or caused the same to be executed by their authorized representative, the day and year first above written.

This Rental Agreement supersedes all prior written or oral agreements and can be amended only through a written agreement signed by both parties.

TENANT: RentSigned by: Kenfort Guillaume Date: 06/01/2023

TENANT: RentSigned by: Amber Guillaume Date: 06/01/2023

TENANT: _____ Date: _____

LANDLORD: RentSigned by: Terri Mallory Date: 06/01/2023

Address and Phone Number of Landlord:

3790 Fernandina Rd Suite 105
Columbia, SC 29210

(803) 407-8522

www.TurnerProperties.com